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Case Number: 24STLC03205 Hearing Date: June 29, 2026 Dept: 26

TENTATIVE RULING:

Defendant Stephan Lecam's Demurrer to the Second Amended Complaint is sustained without leave to amend.

Analysis:

Plaintiff Gavin Ownes ("Plaintiff") brought this action for breach of construction contract and related claims against Defendant Stephan Lecam ("Defendant") on May 2, 2024. Plaintiff filed the First Amended Complaint on May 31, 2024. The action came for trial on October 30, 2025, at which time the Court noted that Defendant had not been served. (Minute Order, 10/30/25.) The Court set an Order to Show Cause Re: Proof of Service and Status Conference Re: Transfer to Unlimited for December 30, 2025. (Ibid.)

On January 28, 2026, the Court denied Plaintiff's Motion to Consolidate and Motion to Amend the Complaint to Allege Increased Damages and Reclassify from Limited to Unlimited Jurisdiction. (Mintue Order, 01/28/26.)

Defendant filed a Demurrer to the First Amended Complaint on January 20, 2026. Following full briefing, the Court sustained the Demurrer with leave to amend. Plaintiff filed the Second Amended Complaint on April 23, 2026, to which Defendant now demurs. Plaintiff filed an opposition on June 15, 2026.

Discussion

The Demurrer is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41. (Demurrer, Ross Decl., ¶2.) The Demurrer is brought for failure to allege sufficient facts, citing Code of Civil Procedure section 430.10, subdivision (e).

Allegations in the Second Amended Complaint

Plaintiff asserts causes of action for (1) breach of contract; (2) breach of implied in fact contract; (3) breach of implied covenant of good faith and fair dealing; and (4) promissory estoppel, against Defendant based on the following allegations.

Defendant is the owner of the real property commonly known as 8404 Franklin Avenue, Los Angeles, CA 90069 ("the Property"). (SAC, ¶3.) The parties have maintained a professional relationship for approximately 12 years, and during that time established a course of conduct for construction projects. (Id. at ¶10.) Plaintiff would provide quotes or estimates for requested work, perform the work on the Property, and Defendant would pay when the work was completed. (Ibid.)

On or about April 5, 2022, Plaintiff prepared a quote to repair the basement and first floor of the Property. (Id. at ¶11.) Consistent with their course of conduct, in February 2023, Defendant asked Plaintiff to proceed with the work on the Property. (Id. at ¶13.) Starting on or about May 1, 2023, Plaintiff began the floor repair work and provided Defendant with additional work on the Property for which an additional quote had been prepared and given to Defendant. (Id. at ¶14.) In early May and throughout the year, Plaintiff completed work on the Property. (Id. at ¶15.) During that time, Defendant asked Plaintiff to perform additional work, including, but not limited to, removal of eroded soil from the hillside, removal of existing chain mail from the hill, regrade/reslope the eroded hillside, and replace the chain mail. (Ibid.) This required Plaintiff to coordinate with two of Defendant's neighbors to arrange permission and a time to remove the excess soil. (Ibid.)

Throughout

the year 2023, the scope of work evolved as Defendant made additional requests over email, text, and in-person. (Id. at ¶16.) Plaintiff completed the previously quoted work from May 2023 to November 2023. (Id. at ¶17.)

On or about December 5, 2023, Plaintiff contacted Defendant over the phone and told him the sheer amount of soil to be removed, the number of loads to be removed, and that the project would take approximately seven days to remove the soil. (Id. at ¶18.) Defendant acknowledged the scope of work and instructed Plaintiff to proceed. (Ibid.) Also in December 2023, Plaintiff asked Plaintiff to repair the roof to the spa/sauna, which included framing, stucco work on the home, and landscaping. (Id. at ¶19.) Plaintiff completed all the additional work on the Property on January 8, 2024. (Id. ¶20.) In accordance with their course of conduct, Plaintiff prepared a final invoice on January 30, 2024 for the stucco work, repair to the roof of the spa and replenishing the landscape, and removal of the dirt from the hillside and restoration of same. (Id. at ¶21.) The invoice set forth the agreed-upon rates for the labor and materials, as follows: $353.00 for exterior stucco work; $230.00 for the framing and repair of the spa/sauna roof; and $13,682.00 for the comprehensive hillside restoration, for a total of $14,265.00. (Id. at ¶21 and Exh. A.)

Plaintiff fully performed under the parties' agreement, but Defendant failed and refused to pay the total amount despite having authorized the scope of work in accordance with the parties' 12-year course of conduct. (Id. at ¶22.) On February 1, 2024, Defendant emailed Plaintiff to dispute the cost of removing the soil. (Id. at ¶23.) Plaintiff responded on February 3, 2024 with detailed invoices. (Id. at ¶24.) The next day, Defendant said he felt that Plaintiff had made enough profit from the repairs to the Property and that Plaintiff should reduce the amount due and owing to Plaintiff. (Id. at ¶24.) Defendant admitted that he could not find anyone to perform the soil-removal work for $2,000.00, as he previously claimed. (Id. at ¶¶23, 25.)

Plaintiff caused a mechanic's lien to be filed on the Property on March 13, 2024. (Id. at ¶27.) In May 2024, Plaintiff learned that Defendant never intended to pay Plaintiff for the work, and had maliciously, deliberately and outrageously tried to place a lien on Plaintiff's California Contractors License Bond to obtain leverage and defraud Plaintiff of the monies owed. (Id. at ¶¶28-29.) Plaintiff holds a Class B General Building Contractor license that allows Plaintiff to engage in various construction activities, including the excavation and removal of soil. (Id. at ¶30.)

Compliance with the Contractors State License Law

Defendant initially demurs to the entire Second Amended Complaint for failure to allege compliance with the Contractors State License Law, set forth at Business and Professions Code section 7031:

Except as provided in subdivision (e), no person engaged in the business or acting in the capacity of a contractor, may bring or maintain any action, or recover in law or equity in any action, in any court of this state for the collection of compensation for the performance of any act or contract where a license is required by this chapter without alleging that they were a duly licensed contractor at all times during the performance of that act or contract . . . .

(Bus. & Profs. Code, § 7031, subd. (a).) In ruling on the Demurrer to the First Amended Complaint, the Court found that the broad allegation that “Plaintiff holds a Class B General Building Contractor license that allows Plaintiff to engage in various construction activities including the excavation and removal of soil” was insufficient. (Minute Order, 04/01/26, p. 3.) Specifically, the Court stated:

This is not a sufficient allegation of licensure under section 7031, which expressly requires an allegation of licensure at all times during performance. Plaintiff alleges that he performed work for Defendant from May 2023 through December 2023 but does not allege that he was licensed for all the work performed for that entire period. This insufficient allegation is grounds to sustain the Demurrer to the entire First Amended Complaint. Plaintiff’s opposition cites no legal authority to support the argument that this specific statutory language is a mere technicality that can be ignored at the pleading stage. However, the Court agrees with Plaintiff that dismissal is not warranted without an opportunity for leave to amend.

(Id.) Inexplicably, Plaintiff makes the exact same, insufficient allegation in the Second Amended Complaint. (See SAC, ¶30.) Despite his failure to amend the allegation the first time he was given leave to do so, Plaintiff then inexplicably requests leave to amend again, stating “Plaintiff acknowledges that a more explicit allegation stating that he was duly licensed ‘at all times during the performance’ of the work would be ideal, and respectfully requests leave to add that precise language if the Court finds the current pleading insufficient.” (Id. at p. 3:15-18.)

The Court already ruled that an allegation of licensure at all times during the performance of the work was necessary – not just ideal -- to survive demurrer. Absent a reasonable explanation from Plaintiff for failing to include such an allegation after being given express leave to amend to do so, the Court will dismiss the Second Amended Complaint without leave to amend for failing to meet the pleading standards mandated by Business & Professions Code section 7031. Plaintiff’s refusal, after notice, to amend to allege that he was licensed “at all times during the performance of the work” suggests that he, in fact, was not. In any event, it is immaterial at this stage. Having failed to amend after leave, the demurrer is sustained without further leave.

The Court likewise sustains the demurrer as to each cause of individually, as follows:

1st Cause of Action for Breach of Contract

The elements of a cause of action for breach of contract are (1) the contract; (2) plaintiff’s performance; (3) defendant’s breach; and (4) resulting damage. (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.) When alleging an oral contract, the plaintiff must plead its essential terms with reasonable certainty. (Acoustic Dynamics Corp. v. Dixon (1967) 253 Cal.App.2d 100, 104.) However, California courts also recognize that “[a]n oral contract may be pleaded generally as to its effect, because it is rarely possible to allege the exact words.” (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

Defendant again argues that the terms of the contract are not sufficiently alleged; specifically, the price, scope of work, or other material terms are not set forth. Plaintiff alleges the scope of the work was to repair the basement and first floor of the Property, remove eroded soil from the hillside, remove existing chain mail from the hill, regrade/reslope the eroded hillside, replace the chain mail, repair the roof to the spa/sauna, which included framing, stucco work on the home, and landscaping. (SAC, ¶¶11,14, 17.) Again, although Plaintiff alleges that quotes were prepared, none are attached to the Second Amended Complaint. Plaintiff includes an invoice dated January 30, 2024, which was after the work was completed. As Plaintiff argues, an after-the-fact invoice is not a contract. (Dem. at 3.) Nor can the terms of any agreement be inferred from the invoice. The SAC alleges that the invoice reflects the "labor charges and rates consistent with the parties' prior successful collaborations and the specific manual labor requirements communicated to the Defendant in December 2023." (Compl., ¶23.) But the invoice does not specify any rates; it describes each task listed as one unit of work and charges vastly different amounts for each, ranging from $98 to $8,685.00 for one unit, making it impossible to infer from it any allegation of an agreed upon rate or past practice between the parties. Thus, the Court finds that the SAC does not plead the essential terms of the agreement with reasonable certainty. The Court sustains the demurrer on this independent ground.

2nd Cause of Action for Breach of Implied-in-Fact Contract

Defendant repeats its argument from the prior demurrer, demurring to the second cause of action on the grounds that it cannot be alleged concurrently with an express contract. As the Court previously ruled, the case on which Defendant relies did not address whether an implied contract and an express contract can be alleged in the alternative. (Hedging Concepts, Inc. v. First Alliance Mortgage Co. (1996) 41 Cal.App.4th 1410, 1420.) It addressed whether the trial court's concurrent factual findings of the existence of an express agreement and an equitable implied-in-law duty of payment were improper. (Ibid.) California courts, however, hold that modern practice allows for pleading in the alternative. (Klein v. Chevron U.S.A., Inc. (2012) 202 Cal.App.4th 1342, 1388.)

Defendant also argues that the allegations demonstrate that he did not assent to the contract price, as set forth in the invoice, because Plaintiff pled that Defendant disputed the invoice. (Dem. at 6.)

The Court agrees for the reasons stated above that the invoice does not prove any agreement between the parties. As pled, it was an after-the-fact disputed demand for payment and does not on its own comprise a contract.

That said, an implied-in-fact contract need not be written or spoken; it may be implied from conduct. (Yari v. Producers Guild of America, Inc. (2008) 161 Cal.App.4th 172, 182) ("A cause of action for breach of implied contract has the same elements as does a cause of action for breach of contract, except that the promise is not expressed in words but is implied from the promisor's conduct.") Plaintiff alleges that "[t]he 12-year history of Plaintiff performing work and Defendant paying for said work created an implied contract that Defendant would pay the reasonable and stated value of the services requested and received." (SAC ¶39.) These allegations are nonetheless insufficient because the SAC, as stated above, does not allege sufficient information from which to infer any agreement between the parties as to the price to be paid for services, either on the face of the document or based on past conduct. The alleged price quotes are not attached to the SAC, nor are their terms alleged, nor does the January 30, 2024 invoice provide information from which any rate or past practice may be inferred. This omission renders the allegations insufficient to state a cause of action for breach of an implied-in-fact contract. (See Allied Anesthesia Med. Grp., Inc. v. Inland Empire Health Plan (2022) 80 Cal. App. 5th 794, 810 ("The amount that IEHP would pay plaintiffs for their services is a material term of any contract, such that, absent an allegation that the parties agreed on that amount, no implied-in-fact contract was formed.")

The demurrer is sustained as to Count Two on this additional basis.

3rd Cause of Action for Breach of the Implied Covenant of Good Faith and Fair Dealing

A cause of action for breach of the implied covenant of good faith and fair dealing cannot survive without an underlying contract. "The prerequisite for any action for breach of the implied covenant of good faith and fair dealing is the existence of a contractual relationship between the parties, since the covenant is an implied term in the contract." (Smith v.

City and County of San Francisco (1990) 225 Cal.App.3d 38, 49.)

Because Plaintiff has not adequately pled the existence of a contract, the third cause of action cannot survive.

4th Cause of Action for Promissory Estoppel

The Demurrer to the fourth cause of action is brought solely on the grounds that a promissory estoppel claim is incompatible with an enforceable contract. Defendant does not show why pleading in the alternative is prohibited.

The cause of action nonetheless does not state a claim for at least two reasons. First, Plaintiff does not identify any particular promise made (see SAC ¶¶53-57), let alone a "clear and unambiguous promise." (Lange v. TIG Ins. Co., (1998) 68 Cal. App. 4th 1179, 1185 ("To be binding, the promise must be clear and unambiguous"); Laks v. Coast Fed. Sav. & Loan Assn. (1976) 60 Cal.App.3d 885, 890 (among the "required elements for promissory estoppel ... are (1) a promise clear and unambiguous in its terms").) Plaintiff only incorporates paragraphs 1-52, but none of those paragraphs allege a clear and unambiguous promise to pay for work performed. At most, they allege that Defendant assented to or requested work without making any particular promise. Any "promise" is implied and would require extrinsic evidence to establish. (See Lange 68 Cal. App 4th 1186 ("[I]f extrinsic evidence is needed to interpret a promise, then obviously the promise is not clear and unambiguous.") Moreover, to the extent Plaintiff pleads that any promise was made in connection with the request for work the doctrine of promissory estoppel simply does not apply. (Healy v. Brewster (1963) 59 Cal. 2d 455, 463 ("The doctrine of promissory estoppel is inapplicable where the promisee's performance was requested by the promisor at the time the promise was made.").

Conclusion

Defendant Stephan Lecam's Demurrer to the Second Amended Complaint is sustained without leave to amend.

Moving party to give notice.